



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: Disciplinary Case No. 2022-27207 / PODS Case No. C-031849 regarding Police Officer Thomas Gerlich

Date: September 18, 2025

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer Gerlich improperly searched an individual's vehicle and bag, interfered with an individual's use of a recording device, and seized an individual's property. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, a penalty consisting of Training, as negotiated by CCRB, will be imposed in this matter.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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Dr. MOHAMMAD KHALID
INTERIM CHAIR

March 27, 2025

The Honorable Jessica Trisch
Police Commissioner
New York City Police Department One Police Plaza
New York, NY 10038
VIA EMAIL

Re: CCRB v. PO Thomas Gerlich (CCRB Case no. 202103696, DADs no. 2022-27207, Tax no. 963536)

Commissioner Tisch:

A negotiated settlement of dismissal of the charge along with Department Imposed Training was agreed upon and signed by all the parties on January 17, 2025. Assistant Deputy Commissioner-Trials, Paul Gamble endorsed the negotiated settlement on February 13, 2025. This is a downward deviation from the NYPD's Disciplinary Matrix. CCRB offered this disposition for the following reasons:

1. PO Gerlich agreed to take responsibility for his misconduct.
2. While serving at the 44th Precinct, PO Gerlich was rated above standard by his Commanding Officer, Deputy Inspector Anthony J. Masica.
3. PO Gerlich has also been a member of service for eight years with no disciplinary history and the CCRB believes there is great potential for training to correct/rehabilitate the behavior.
4. The duration of these actions, which lasted no more than several minutes and the limited impact upon the civilian are also a factor CCRB considered in recommending NYPD training.

Therefore, CCRB is recommending a dismissal of Charges and Specifications and NYPD imposed training regarding this matter.

Respectfully submitted,

Andre D. Applewhite
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Chief Prosecutor
NYC Civilian Complaint Review Board